

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZACCHAEUS ZOMAYA,

Petitioner

VS.

MADINAH RUMION,

Respondent

) Case Number: FPT-24-378508

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zacchaeus Zomaya (Father) and Respondent Madinah Rumion (Mother). The minor child subject to this proceeding is Rheya Zomaya (DOB: 04/11/22).
- 2) On September 11, 2025, following 4 days of trial on Mother's Request for Domestic Violence Restraining Order (DVRO), the Court granted a 5-year DVRO against Father. The parties' minor child is listed as a protected party. Mother has sole legal and sole physical custody of the minor child and Father has parenting time with the minor child two times per week for two hours at a time.
- 3) On October 20, 2025, Mother filed a Request for Order seeking the Court's permission to relocate to the State of Florida with the minor child.
- 4) On January 20, 2026, Father filed a Responsive Declaration in opposition to Mother's requests.
- 5) On January 29, 2026, the matter was heard and the Court issued the following orders:
 - a. Matter set for trial setting on April 6, 2026, in Department 405

- b. Related case no. FDV-25-818277 is hereby consolidated with case no. FPT-24-378508. Case no. FPT-24-378508 shall be the lead case for all future filings.
- c. Father's request for joint legal and joint physical custody is DENIED.
- d. Father's request for unsupervised visitation is DENIED.
- e. The Court does not find any basis to modify the existing orders given that Father has not begun the court-ordered Batterer's Intervention Program.

6) On February 4, 2026, Father filed a Request for Order renewing his request to modify child custody and visitation. Matter was set for Readiness on March 9, 2026.

7) On March 9, 2026, the Court referred the parties to FCS Mediation to occur on April 2, 2026 and set a review hearing on April 23, 2026.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Father's request to modify child custody to joint legal and joint physical custody is DENIED. While the Court understands Father commenced a 52-week Batterer's Intervention Program, the program has not yet been completed, which is a prerequisite pursuant to California Family Code section 3044.

3) Father's request to modify the existing parenting plan is GRANTED. Commencing, April 23, 2026, Father's parenting time with the minor child shall be moved to UNSUPERVISED visits. Father shall have parenting time with the minor child shall be as follows:

- a. The 1st, 3rd and 4th weekends of each month on Saturdays and Sundays from 10:00 a.m – 4:00 p.m. (*Father's first unsupervised visit to occur on Saturday, April 25, 2026*).
- b. In addition, Father may have parenting time with the minor child each Wednesday from 6:00 p.m. – 7:30 p.m., commencing on Wednesday, April 29, 2026.
- c. All exchanges shall occur at the Waller Police Station located at 1899 Waller Street, San Francisco.

- 1 4) The Request for Order filed by Father, on February 4, 2026, is considered fully adjudicated. The
2 party's trial regarding Mother's request to move-away (filed October 20, 2025) to the State of
3 Florida with the minor child is confirmed, as previously calendared by Department 405, to occur
4 on June 24, 2026-June 25, 2026. Parties shall comply with Department 405's previously issued
5 trial orders.
- 6 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 7 6) The Court will prepare the Findings and Order After Hearing.